

not change the character of the wages as community property. The Court acknowledges that the judgment against Christine Eatmon was discharged in bankruptcy. However this does not exempt her wages from garnishment pursuant to 11 U.S. Code § 524(b)(2).

The Motion is **GRANTED**. An earnings assignment order shall be issued against the Judgment Debtor's spouse, Christine Eatmon. Judgment Creditors have submitted a proposed order that will be executed by the Court.

**IN RE: MARTIN**

**CASE NUMBER: 26CV-0210536**

**Tentative Ruling on Petition for Change of Name:** Petitioner Tracy Lynn Martin seeks to change her name to TabithaKaterina Tracy-Lynn Martin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**IN RE: MONDRAGON**

**CASE NUMBER: 26CV-0210282**

**Tentative Ruling on Petition for Change of Name:** Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

**IN RE: PANDIT**

**CASE NUMBER: 26CV-0210214**

**Tentative Ruling on Petition for Change of Name:** Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**PONCIANO, ET AL. VS. MARX, ET AL.**

**CASE NUMBER: CVCV20-0194371**

**Tentative Ruling on Motion for Attorney's Fees:** Plaintiffs/Cross-Defendants Dan Ponciano, Jean Ponciano, and Ashley Spurgeon request attorney's fees in the amount of \$281,845. The motion was originally noticed for hearing on June 29, 2026, however, the hearing was continued to July 20, 2026 by stipulation of the parties. The motion is opposed by Defendants/Cross-Complainants Charles H. Marx and Marlene Marx, individually and on behalf of the Marx Family 2012 Trust, and Cory Herzberg. As a preliminary matter, the motion was timely filed. CRC 3.1702(b)(1).

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed